

**Court No. - 21**

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Petitioner Counsel :-** R.P. Dubey, Satyendra Nath Tripathi

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble R.K. Agrawal, J.**

**Hon'ble Vinay Kumar Mathur, J.**

Sri Rajesh Tripathi to obtain instructions. Put up as a fresh case on 9th April, 2012.

**Order Date :-** 3.4.2012

mt

**Court No. - 21**

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Petitioner Counsel :-** R.P. Dubey, Satyendra Nath Tripathi

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble R.K. Agrawal, J.**

**Hon'ble Vinay Kumar Mathur, J.**

Shri Rajesh Tripathi, learned counsel for the respondents has not been able to obtain instructions.

Put up on 17.4.2012 as a fresh case.

**Order Date :-** 9.4.2012

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**Court No. - 21**

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Petitioner Counsel :-** R.P. Dubey, Satyendra Nath Tripathi

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble R.K. Agrawal, J.**

**Hon'ble Mushaffey Ahmad, J.**

Invariably in all cases where Dakshinanchal Vidyut Vitran Nigam Ltd. is a party, the instructions are not forthcoming and the Court has to grant time several times. This is one of those cases. On 3rd April, 2012, Sri Rajesh Tripathi, who represents respondent nos. 2, 3 and 4 was granted time to obtain instructions and the matter was posted for 9th April, 2012. On 9th April, 2012 again when the matter was taken up Sri Rajesh Tripathi stated that he had not been able to obtain instructions and the matter was posted for today. Today again Sri Rajesh Tripathi stated that he had not been able to obtain instructions. As a last opportunity one week's further time is allowed to obtain instructions. Put up as a fresh case on 24th April, 2012.

A copy of this order be sent to the Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd. for ensuring the compliance of this order.

**Order Date :-** 17.4.2012

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**Court No. - 21**

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**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Petitioner Counsel :-** R.P. Dubey, Satyendra Nath Tripathi

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble R.K. Agrawal, J.**

**Hon'ble Mushaffey Ahmad, J.**

On the request of Shri Rajesh Tripathi, put up as fresh on 30.4.2012.

**Order Date :-** 24.4.2012

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**Court No. - 21**

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Petitioner Counsel :-** R.P. Dubey, Satyendra Nath Tripathi

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble R.K. Agrawal, J.**

**Hon'ble Mushaffey Ahmad, J.**

Counter affidavit filed today be taken on record.

As prayed, rejoinder be filed within ten days.

List thereafter.

**Order Date :-** 30.4.2012

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**Court No. - 10**

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Counsel for Petitioner :-** R.P. Dubey, Satyendra Nath Tripathi

**Counsel for Respondent :-** C.S.C., Rajesh Tripathi

**Hon'ble Arun Tandon, J.**

**Hon'ble Anjani Kumar Mishra, J.**

Nobody is present to press the present writ petition even in the revised reading of the cause list.

Writ petition is dismissed for want of prosecution.

Interim order, if any, stands discharged.

Shri Rajesh Tripathi, counsel for the respondent is present.

**Dated :06.11.2013**

**VR/16378/13**

**Court No. - 21**

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Counsel for Petitioner :-** R.P. Dubey, Satyendra Nath Tripathi

**Counsel for Respondent :-** C.S.C., Rajesh Tripathi

**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Vivek Kumar Birla, J.**

Learned counsel for the petitioner may also serve notice to Sri Rajesh Tripathi, who was counsel present on the date when the petition was dismissed for want of prosecution.

List in the next cause list.

**Order Date :-** 25.2.2014

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**Court No. - 21**

**Civil Misc. Restoration Application No. 340689 of 2013**

IN

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Counsel for Petitioner :-** R.P. Dubey, Satyendra Nath Tripathi

**Counsel for Respondent :-** C.S.C., Rajesh Tripathi

**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Vivek Kumar Birla, J.**

We have heard Sri R.P. Dubey, learned counsel for the petitioner and perused the affidavit filed in support of the application.

We are satisfied that sufficient grounds have been made out to set aside the order dated 6.11.2012.

Consequently, we recall the order dated 6.11.2012 and restore the writ petition to its original number.

The application is allowed.

**Order Date :-** 5.3.2014

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**Court No. - 21**

**Civil Misc. Delay application No. 228323 of 2013**

**Civil Misc. Substitution Application No. 228324 of 2013**

IN

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Counsel for Petitioner :-** R.P. Dubey, Satyendra Nath Tripathi

**Counsel for Respondent :-** C.S.C., Rajesh Tripathi

**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Vivek Kumar Birla, J.**

Learned counsel for the petitioner has filed this substitution application after serving a copy of the same on the learned counsel for the respondents.

Having perused the contents of the application, we are satisfied that sufficient cause has been shown for substituting the legal heirs of the sole petitioner who has died during the pendency of the writ petition. The delay in filing of the substitution stands condoned.

The substitution application is allowed.

Let all the legal heirs be incorporated accordingly.

**Order Date :-** 5.3.2014

Puspendra

**Court No. - 21**

**Case :-** WRIT - C No. - 16378 of 2012

**Petitioner :-** Satya Prakash Singhal

**Respondent :-** State Of U.P. Thru Secy. And Others

**Counsel for Petitioner :-** R.P. Dubey, Satyendra Nath Tripathi

**Counsel for Respondent :-** C.S.C., Rajesh Tripathi

**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Vivek Kumar Birla, J.**

This writ petition has been heard after notices have been served in writing by the learned counsel for the petitioner on Sri Baleshwar Chaturvedi which is now the counsel for the respondents no. 2 to 4, as the earlier counsel Sri Rajesh Tripathi has refused to take notice.

The prayer made in this petition is for a mandamus to direct the authorities to consider the reconnection of the petitioner and its restoration, after it has been disconnected on account of allegations of theft against the petitioner.

Learned counsel for the petitioner submits that the criminal case has ended in discharge of the accused and in these circumstances the electricity connection deserves to be restored.

From the document, which has been filed as Annexure 4 to the writ petition dated 31.10.2011, we find that the status of the connection is described as PDC final which presumably is indicating the status of the disconnection.

Learned counsel further submits that in the event final disconnection has not been made, the restoration can be carried out.

We have perused Clause 4.39 of the Electricity Supply Code 2005 read with the second proviso to sub-section 1(A) of Section 135 of the Electricity Act 2003 and we, accordingly, find that the provisions for reconnection or fresh connection in the event of permanent disconnection are available under the aforesaid provisions.

Consequently, this writ petition is disposed of with a direction to the respondent no. 3 to consider the request of the petitioner in the light of the provisions that can be pressed into service for providing an electricity connection to the petitioner either by reconnecting and restoring the same or by granting fresh connection in accordance with law within a period of six weeks from the date of production of certified copy of this order produced before the said authority provided the petitioner has cleared off all the dues pending against him.

With the aforesaid observations, the writ petition is **disposed** off.

**Order Date :-** 5.3.2014

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